Freecharge Payment Technologies Pvt ... vs Frederica Marketing Pvt Ltd on 18 April, 2023

Author: Yashwant Varma

Bench: Yashwant Varma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ OMP (ENF.) (COMM.) 250/2022
FREECHARGE PAYMENT TECHNOLOGIES PVT LTD
..... Decree Hold
Through: Mr. Siddharth Dutta, Mr. Amit Mishra, Ms. Mitakshara Goyal and Mr. Bhavya Sehgal, Advs.
versus

FREDERICA MARKETING PVT LTD ..... Judgement Debtor
Through: Mr. Sanyam Rastogi and Mr. Laksh Yadav, Advs.

CORAM:
HON'BLE MR. JUSTICE YASHWANT VARMA
ORDER

% 18.04.2023 The respondent is directed to place on the record the Affidavit of Assets before the next of date of hearing. The disclosures be made as per the format which stands appended to the present order as Annexure-A. List again on 17.07.2023.

YASHWANT VARMA, J.

APRIL 18, 2023 SU ANNEXURE A FORMAT OF AFFIDAVIT OF ASSETS AND INCOME OF THE JUDGMENT-DEBTOR I/we_____, son of / daughter of wife of / _____, aged about ____ years, resident of _____, am/are the Proprietor/Directors/Promoters/Partners/Karta/Managing Trustee of the_____ _____ and I/we do hereby solemnly affirm and declare as under:

S. No. Description Particulars

1. Whether judgment-debtor has the means to satisfy the award/ decree/order? If yes, please give the proposed Schedule of payment:

2. Details of registration and incorporation

3. Current address of registered office and the addresses of registered offices in the last ten years

4. Particulars of shareholding of the judgment-

debtor and inter-se relationship of shareholders

5. Particulars of the Partners/Directors/Promoters and other key managerial staff with their name, age, designation, length of employment, past employment details of past ten years, complete residence address, their shareholding in the Company, its subsidiaries, its joint ventures and other associated entities

6. Name and addresses of the Partners/Directors/ Promoters on the date of the incorporation Note 1 - If the judgment debtor is a company, this affidavit has to be executed by all Directors/Promoters (other than independent/non-executive/nominee directors); If the judgment debtor is a partnership firm, this affidavit has to be executed by all its partners; If the judgment debtor is a proprietorship firm, this affidavit has to be executed, by its proprietor and in case of a trust, by its Managing Trustee. Note 2 - All the documents attached to this affidavit have to be self-attested by the deponent.

7. Name and addresses of the Partners/Directors/ Promoters on the date of the beginning of the cause of action

8. Name and addresses of the Partners/Directors/ Promoters on the date of the decree/ award was passed

9. Name and addresses of the Partners/Directors/ Promoters on date of the affidavit

10. Name and addresses of the nominee and official directors

11. Particulars of all related parties including subsidiary companies, sister concerns, agencies, distributors etc.

12. Net worth of the Business/Firm/Company

13. Number of employees

14. Location of the statutory records and books of account of the judgment-debtor

15. Location of the business assets of the judgment-

debtor

16. Amount of regular monthly withdrawals or drawings by each of Directors/Promoters/Partners /Proprietor/ Trustee

17. Particulars of the transactions with the related parties whether in the form of expenses, loans or otherwise from the date of the beginning of cause of action upto the date of the affidavit

18. Have any Directors/Promoters/Partners /Proprietor/ Trustee taken loan/overdrawn/credit from the judgment-debtor? If so, give particulars

19. Has the judgment-debtor transferred any assets to any Directors /Promoters /Partners /Proprietor/ Trustee? If so, give particulars

20. Particulars of the benefits received by any Directors/Promoters/Partners/Proprietor/Trustee from the judgment-debtor other than by way of salary. e.g. provision of car, payment of accommodation etc. STATEMENT OF ASSETS S.No. Assets List of Assets Present Estimated On the date of On the date Present Market the cause of of the decree Value action /award

21. (i) Immovable properties Particulars of the immovable properties including joint properties, built up properties, lease hold properties, land /agricultural land and investment in real estate such as booking of plots, flats, etc. of the judgment- debtor

(ii) Possession Whether the possession of the above properties is with the judgment-debtor? If no, give status of the possession

(iii) Title documents Whether the title documents of the above properties are with the judgment-debtor?

If no, give status of the possession of the title documents

(iv) Litigation Whether any litigation is pending in respect of the above properties. If so, give particulars

22. Financial Assets/Debts: S.No. Account Name of Bank Current Number Balance

(i) Particulars of all bank accounts including Current and 1. Savings Accounts in judgment- debtors name or joint names with the judgment-debtor held in 2.

the last ten years Note : If any bank account(s) has/have been classified by the banks as willful defaulter under 4. the Master Circular on 'Wilful Defaulters' dated 01.07.2015 [RBI/2015- 5.

16/100DBR.No.CID.BC.

22/20.16.003/2015-16] or 6. Reserve Bank of India (Frauds classification and reporting by commercial banks and select 7. Financial Institutions) directions 2016 under Master Circular dated

01.07.2016(RBI /DBS/2016-17/28 DBS. CO.

CFMC. BC. No.1/23.04.001 /2016-17), give particulars of such bank accounts.

		Details	Curren
(ii)	Particulars of DEMAT accounts held by judgment-debtor in last ten years		Value Shares
(iii)	Cash in hand		

(iv) Particulars of the safety deposit of lockers in the name of the judgment-debtor or in joint names with the judgment-debtor

(v) Particulars of the debts/ liabilities of the judgment- debtor

(vi) Particulars of the overdraft facility along with name and address of the bank, branch, account No., type and particulars of the security given to secure the overdraft

23. Investments Particulars Current Value

(i) FDR(s), NSC, IVP, KVP, Post Office schemes, Provident Fund(s) etc.

(ii) Deposits with Government and Non-Government entities

(iii) Stocks, shares, debentures, bonds, units and mutual funds, etc.

(iv) Insurance policies

(v) Loan given

(vi) Details of the foreign investments made including those made in last ten years or from the date of beginning of cause of action, whichever is later

(vii) Other investments not covered by above items

24. Movable Assets Particulars Cost of Acquisiti

(i) Motor Vehicles (List of on cars, motorcycles, scooters etc. along with their brand and registration number)

(ii) Livestock

(iii) Plant &Equipments

(iv) Mobile phone(s)

(v) Computer/Laptop

(vi) Other electronic gadgets including I-pad etc.

(vii) TV, Fridge, Air Conditioner, etc.

(viii) Any other movable assets having cost of acquisition of more than Rs.25,000/-

each

25. Intangible assets Intangible assets including patents, trademark, copyright, design, goodwill and their value

26. Garnishee(s)/Trade receivables

(i) Name(s) and addresses of Garnishee(s) and the particulars of the debt, share and other properties recoverable from the Garnishee(s) with complete details of the transactions

(ii) Trade receivables along with name, address and amount due from each Garnishee(s)

27. Corporate/Business Interests

(i) Particulars of the interest/ position/ association of the judgment-debtor, directly or indirectly, in any corporation, unincorporated business, Company, partnership, trust, joint venture and Association of Persons, Society etc. in the past ten years or from the date of beginning of cause of action, whichever is later

(ii) Complete details of all the subsidiary Companies, their operations and balance sheets for the past ten years or from the date of beginning of cause of action, whichever is later

28. About disposal of properties

(i) Particulars of properties transferred/agreed to be transferred or parted with the possession by any mode including sale, gift, relinquishment, General Power of Attorney, Special Power of Attorney, exchange, agreement, family settlement, lease, transfer of share holding/investment etc. date of beginning of cause of action, whichever is later; name/address of the transferee and the sale consideration received from the transferee(s)

(ii) List of properties that have ever been in judgment-

debtors name or in which judgment-debtor had any right/ interest

29. Existing charges on the assets

(i) Particulars of existing charges on the assets of the judgment-debtor including mortgage, charge, pledge on the assets

(ii) Whether the charges are registered, and the present status of the same

(iii) Whether any of the assets are subject to attachment proceedings under any Act including Prevention of Money Laundering Act, 2002; Income Tax Act, 1961; Benami Transactions (Prohibition) Act,1988 and Black Money (Undisclosed Foreign Income and Assets) and Imposition of Tax Act, 2015

30. List of other assets not itemized above STATEMENT OF INCOME S. No Description On the date of On the date of Present the cause of the award/decree action

31. Income from business/profession

(i) Annual turnover / gross receipts

(ii) Gross Profit

(iii) Income Tax

(iv) Net Income Note: If the business is closed/non- active, give the date of closure, assets on the date of closure, present status of the assets and if the assets have been transferred, the particulars of the transfer and consideration received

32. Income from Other Sources

(i) Agricultural Income

(ii) Rent

(iii) Interest on bank deposits and FDRs

(iv) Interest on investments including deposits, NSC, IVP, KVP, Post Office schemes, PPF, loans etc.

(v) Dividends

(vi) Income from machinery, plant or furniture let on hire

(vii) Profit on sale of movable/ immovable assets

(viii) Any other sources of income not covered above Note: - If the judgment-debtoris expecting to receive a lump sum payment in the future, give further details including the amount and expected date of receipt of the payment

33. Any other income not covered above OTHER RELEVANT INFORMATION

34.VerifiedWhether the Proprietor / Partners /Directors /Promoters / Signature Not Digitally Signed By:NEHA Signing Date:20.04.2023 02:38:22 Trustees/ other key persons of the judgment-debtor have ever been arrested?

35. Whether the Directors/Promoters/Partners/Proprietor/ Trustees/ other key persons of the judgment-debtor have ever been kept under detention?

36. Whether any Court issued bailable/non-bailable warrants for appearance of Directors/Promoters/Partners/Proprietor/ Trustees/ other key persons of the judgment-debtor?

37. Whether the Directors/Promoters/Partners/Proprietor/ Trustees/ other key persons of the judgment-debtor have ever sought bail/anticipatory bail?

38. Whether the Directors/Promoters/Partners/Proprietor/ Trustees/ other key persons of the judgment-debtor have ever been prosecuted for any offence?

39. Whether the Directors/Promoters/Partners/Proprietor/ Trustees/ other key persons of the judgment-debtor have ever been convicted for any offence?

40. Whether the Directors/Promoters/Partners/Proprietor/ Trustees/ other key persons of the judgment-debtor have ever been declared as proclaimed offender/ proclaimed person?

41. If the answer to any of the above-mentioned questions is „Yes , give full particulars of the case/ arrest/bail/detention/conviction/sentence/ punishment etc. and/or the details of the case

42. Details of all litigations, disputes, claims, arbitrations FIR s, Complaints etc. pending in any Court, Tribunal, Forum, Authority, Arbitrator, etc. in which judgment- debtor is a party Give the details of the case, name of the Court, nature of case, amount involved and the next date of hearing

43. Details of all litigations, disputes, claims, arbitrations FIR s, Complaints etc. decided by any Court, Tribunal, Forum, Authority, Arbitrator, etc. in which judgment- debtor was a party Give the details of the case, name of the Court, value of case, amount involved and date of decision

44. Particulars of the unsatisfied decrees/awards against the judgment-debtor

45. Details of loan/credit facility(s) taken from banks and other financial institutions in the last five years and the present status

46. Details of the charitable institutions or other bodies in which judgment-debtor made donations, gifts, grants, etc. in last ten years or from the date of beginning of cause of action, whichever is later

47. Name and address of the auditors and date of last audit of accounts

48. Whether the Proprietor / Partners /Directors /Promoters/ Trustee of the judgment-debtor intend to travel outside India? If yes, Give details of the visit, purpose of visit and the approximate expenditure on the visit DOCUMENTS S. No. Document Description of Document

49. Aadhaar Card

50. Voter ID Card

51. Ration Card

52. PAN Card

53. Passport

54. Driving Licence

55. CIR/CIBIL Score Description Please Tick Attached NA To follow

56. Statement of Account of all bank accounts including current, savings and DEMAT accounts of the judgment-debtor for last three years

57. (i) If the judgment-debtor is a sole proprietorship concern

- Income Tax Return(s) along with the balance sheets, Profit & Loss Account, statement of income and Annexures of the proprietorship firm for last five years

(ii) If the judgment-debtor is a partnership firm - Income Tax Return(s) along with the balance sheets, Profit & Loss Account, statement of income and Annexures of the partnership firm, along with the Schedule showing the distribution of partners remuneration and share of profits/losses of the partnership firm and the copy of the partnership deed, for last five years

(iii) If the judgment-debtor is a Company - Income Tax Return(s) along with the balance sheets, Profit & Loss Account, statement of income and Annexures of the Company for last five years

(iv) If the judgment-debtor in an Association of Persons, HUF, Joint Family business or Trust - Income Tax Return(s) along with the balance sheets, Profit & Loss Account, statement of income and Annexures of the Association of Persons, HUF, Joint Family business or Trust for last five years

(v) GST/ VAT/ Excise/ Sales Tax registration, returns in last five years

(vi) TDS certificates

58. In case of Income from other sources:

(i) Lease Deed(s)/ Rent Agreement(s)/ License Agreement(s) in respect of the rental income

(ii) Interest Certificate in respect of the interest income on deposits and investments

(iii) Dividend Certificates

59. Title deeds of the immovable properties of the judgment-

debtor

60. Documents relating to the debt, shares and other properties of the judgment-debtor recoverable from the Garnishee(s) Signature Not

61. VerifiedDocuments relating to the properties transferred, alienated or Digitally Signed By:NEHA Signing Date:20.04.2023 02:38:22 parted with person or agreed to be transferred by the judgment-debtor

62. Documents pertaining to any pre-existing charge on the assets, or orders pertaining to attachment of assets by authorities including but not limited under Prevention of Money Laundering Act, 2002; Income Tax Act, 1961; Benami Transactions (Prohibition) Act, 1988; and Black Money (Undisclosed Foreign Income and Assets)and Imposition of Tax Act, 2015

63. Form 26AS downloaded from the website of Income Tax Department for the last five financial years

64. Forms 3CA/3CB and 3CD, as applicable, pursuant to Section 44AB of the Income Tax Act, 1961 filed for the last five years

65. Documents relating to arrest/ detention/ warrants/ bails/ prosecutions/ convictions/ declarations of being proclaimed offender/person

66. Documents relating to the pending litigations including FIR in which the judgment-debtor was or is involved

67. Documents relating to the decided litigations

68. Documents relating to the unsatisfied decrees/awards

69. Other relevant documents relating to assets and income Declaration:

1. I/we declare that I/we have made accurate, true and complete disclosure of income and assets of the judgment-debtor from all sources. I/we further declare that the judgment-debtor has no assets, income or financial resources other than those set out in this affidavit.

2. I/we undertake to inform this Court immediately upon any material change in the income and assets of the judgment-debtor or any other information disclosed in this affidavit.

3. I/we hereby declare that the contents of this affidavit have been duly explained

4. The copies of the documents filed with the affidavit are the true copies of the originals and I/we have self attested the copies after comparing them with their originals.

5. I/we understand that any false statement and misrepresentation in this affidavit may constitute an offence under Section 199 read with Sections 191 and 193 of the Indian Penal Code, 1860 punishable with imprisonment upto seven years and fine, and Section 209 of the Indian Penal Code, 1860 punishable with imprisonment upto two years and fine. I/we have read and understood Sections 191, 193, 199 and 209 of the Indian Penal Code, 1860.

DEPONENT Verification:

Verified at _____on this _____ day of _____ that the contents of the above affidavit relating to the income and assets of the judgment-debtor are true to my/our knowledge, no part of it is false and nothing material has been concealed therefrom. I/we further verify that the copies of the documents filed along with the affidavit are true copies of the originals.

DEPONENT